Mona Aresh Goel vs Aresh Satya Goel on 21 March, 2000

Equivalent citations: AIR2000SC3512, JT2000(3)SC603, (2000)9SCC255, AIR 2000 SUPREME COURT 3512(1), 2000 (9) SCC 255, 2000 AIR SCW 2652, (2000) 6 SUPREME 326, (2001) 1 MARRILJ 75, (2000) 7 SUPREME 723, 2000 ALL CJ 2 975, (2000) 19 OCR 605, (2000) 3 ICC 338, (2000) 39 ALL LR 377, (2001) 1 BLJ 41, (2000) 3 JT 603 (SC)

Bench: S.P. Bharucha, S.S.M. Quadri, M.B. Shah

ORDER

1. The respondent-husband has been served but does not appear.

2. The transfer petition is filed by the wife to transfer the divorce proceedings taken by the husband in Bombay to Delhi, where she now stays with her parents. The transfer petition avers that the wife has no independent income and that her parents are not in a position to bear the expenses of her travel from Delhi to Bombay to contest the divorce proceedings. She avers that she is twenty two years old and cannot travel to and stay in Bombay alone for, there is no one in Bombay with whom she can stay. We are of the opinion that the transfer petition should, in the circumstances, be allowed.

3. The transfer petition is made absolute in terms of prayer (a), M.J. Petition No. A-636 of 1999 pending before the family Court at Bandra, Bombay is transferred to the Court of the District Judge, Tis Hazari, Delhi, who shall hear it. himself or assign it for hearing to a competent Court.

4. No order as to costs.